

HISTORY HACK · DOCUMENT-BASED QUESTION

Civil Liberties in the War on Terror Era

US.90 — Describe the impact of the September 11, 2001 terrorist attacks on the World Trade Center and the Pentagon, including the response of President George W. Bush and the USA PATRIOT Act.

TEACHER EDITION — scoring guide and expected evidence. Not for student distribution.

Name _____ Class _____ Date _____

Directions. Read the following two primary source excerpts. Using the SOAPS framework and your knowledge of US.92, write a response that analyzes both documents and constructs an argument about the tension between national security and civil liberties in post-9/11 America, connecting this tension to earlier moments in U.S. history.

The sources

Document A

USA PATRIOT Act (Public Law 107-56), Preamble and Section 215, October 26, 2001 (Public domain; U.S. Government Publishing Office)

“To deter and punish terrorist acts in the United States and around the world, to enhance law enforcement investigatory tools, and for other purposes... The Director of the Federal Bureau of Investigation or a designee of the Director... may make an application for an order requiring the production of any tangible things (including books, records, papers, documents, and other items) for an investigation to protect against international terrorism or clandestine intelligence activities, provided that such investigation of a United States person is not conducted solely upon the basis of activities protected by the first amendment to the Constitution.”

SOURCE IT — DOCUMENT A

H — Historical context

What was happening when this was made?

I — Intended audience

Who was meant to read or hear it?

P — Purpose

What was it trying to make the audience do or think?

P — Point of view

Who is speaking, and how does that shape it?

Document B

Senator Russ Feingold (D-WI), Statement on the Senate Floor Opposing the USA PATRIOT Act, October 25, 2001 (Public domain; Congressional Record, U.S. Senate)

“Of course, there is no doubt that if we lived in a police state, it would be easier to catch terrorists. If we lived in a country that allowed the police to search your home at any time for any reason; if we lived in a country that allowed the government to open your mail, eavesdrop on your phone conversations, or intercept your email communications; if we lived in a country that allowed the government to hold people in jail indefinitely based on what they write or think, or based on mere suspicion that they are up to no good, then the government would no doubt discover and arrest more terrorists. But that probably would not be a country in which we would want to live.”

SOURCE IT — DOCUMENT B

H — Historical context

What was happening when
this was made?

I — Intended audience

Who was meant to read or
hear it?

P — Purpose

What was it trying to make
the audience do or think?

P — Point of view

Who is speaking, and how
does that shape it?

The question

Using both documents and your knowledge of US.92, write a response that: (1) applies SOAPS to each document; (2) constructs an argument about the constitutional values at stake in this debate; and (3) evaluates whether Feingold's warnings proved prescient based on subsequent revelations about the PATRIOT Act's implementation, connecting to at least one earlier historical precedent for wartime civil liberties restrictions.

Plan your answer

Your claim	
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Source	Evidence you will use	Why it supports your claim
Document A		
Document B		
Outside knowledge		

Write your response

Scoring guide

Pts	6-point scale
6	Exemplary. Full SOAPS for both documents with historically precise context, speaker identification, audience, purpose, and significance. Argument identifies the specific constitutional provisions at stake (Fourth Amendment warrant requirements, First Amendment protections). Evaluates Feingold's prescience with specific reference to Snowden/NSA revelations. Connects to a prior precedent (EO 9066, Espionage Act, COINTELPRO) with analysis of the historical pattern.
5	Advanced. SOAPS applied to both with minor gaps. Constitutional argument is clear. Feingold's prescience evaluated with reference to at least one subsequent revelation. Prior precedent identified.
4	Proficient. SOAPS applied to both but some elements superficial. Constitutional argument present. One prior precedent mentioned.
3	Adequate. SOAPS applied to one document fully. Constitutional values identified. Some connection to prior history.
2	Developing. Partial SOAPS for one document. Notes civil liberties concerns but lacks constitutional analysis.
1	Beginning. Minimal document engagement. Summary rather than analysis.
0	No response or completely off-topic.

Expected evidence and document analysis. DOCUMENT ANALYSIS EXPECTATIONS: Doc A SOAPS — Congress/post-9/11 emergency/law enforcement + courts/expand investigatory tools/Section 215 breadth controversy; Doc B SOAPS — Feingold/PATRIOT Act vote/Senate + American public/constitutional objection/prophetic lone dissent. KEY EVIDENCE EXPECTED: NSA bulk metadata collection; Edward Snowden (2013); Second Circuit ruling Section 215 (2015); USA FREEDOM Act (2015); EO 9066 and internment (1942); Civil Liberties Act of 1988; Espionage Act (1917); COINTELPRO; Fourth Amendment warrant clause; Katz v. United States (1967).

Sourcing. Every document above carries its own citation as written in the item record. Verify each against the holding institution before classroom use — an unsourced primary source is worse than a missing one.

History Hack · TroopToTeacher Technologies. Tennessee Academic Standards 2027-28. classroom-formative · pre-field-test — this activity has not been field-tested and its scoring guide is not calibrated.